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一、文章中英文主旨

中文主旨

本文围绕美国联邦巡回上诉法院拟对商业方法专利进行全面复审、大幅缩减该类专利授权范围的举措展开，追溯了商业方法专利的起源与发展，分析了此次政策转向的背景、原因及潜在影响，指出该举措是联邦巡回法院响应最高法院反专利趋势的重大调整。

英文主旨

This article focuses on the initiative of the U.S. Court of Appeals for the Federal Circuit to conduct a comprehensive review of business-method patents and significantly scale back the scope of their authorization. It traces the origin and development of business-method patents, analyzes the background, reasons and potential impacts of this policy shift, and points out that this move is a major adjustment by the Federal Circuit in response to the anti-patent trend of the Supreme Court.

二、逐句精读解析

第一段

原文句1: Over the past decade, thousands of patents have been granted for what are called business methods.

- 译文：在过去十年间，数千项所谓的“商业方法”被授予了专利。
- 常考单词&短语：
 - decade n. 十年，十年期（考研高频词）
 - patent n. 专利；专利权 v. 授予专利；获得专利 adj. 专利的
 - grant v. 授予，颁发；同意，准予 n. 拨款，补助金
 - be granted for 为...授予...
 - business method 商业方法
- 长难句结构分析：

本句为复合句，主干是 **thousands of patents have been granted**（现在完成时被动语态）；**over the past decade** 为时间状语；**for what are called business methods** 是介词短语作对象状语，其中 **what** 引导宾语从句，作介词 **for** 的宾语，**what** 在从句中作主语。

原文句2: Amazon.com received one for its “one-click” online payment system.

- 译文：亚马逊公司为其“一键式”在线支付系统获得了一项此类专利。
- 常考单词&短语：
 - receive v. 收到，获得；接待
 - one-click adj. 一键式的
 - online payment system 在线支付系统
 - payment n. 支付，付款；款项

原文句3: Merrill Lynch got legal protection for an asset allocation strategy.

- 译文: 美林证券为其一项资产配置策略获得了法律保护。
- 常考单词&短语:
 - legal protection 法律保护
 - asset n. 资产; 财产; 有利条件
 - allocation n. 分配, 配置
 - asset allocation 资产配置 (金融类高频短语)
 - strategy n. 策略, 战略; 规划

原文句4: One inventor patented a technique for lifting a box.

- 译文: 有一位发明者为一种抬箱子的技术申请了专利。
- 常考单词&短语:
 - inventor n. 发明者, 发明家
 - technique n. 技术, 技巧; 工艺
 - lift v. 举起, 抬起; 提升; 解除 n. 电梯; 举起

第二段

原文句1: Now the nation's top patent court appears completely ready to scale back on business-method patents, which have been controversial ever since they were first authorized 10 years ago.

- 译文: 如今, 美国国家最高专利法院似乎已经做好了充分准备, 要缩减商业方法专利的规模, 这类专利自10年前首次获批以来就一直备受争议。
- 常考单词&短语:
 - appear v. 似乎, 好像; 出现; 发表
 - be ready to do sth. 准备好做某事
 - scale back on 缩减, 削减 (规模、数量等)
 - controversial adj. 有争议的, 引起争论的
 - ever since 自...以来, 从...之后
 - authorize v. 批准, 授权; 认可
- 长难句结构分析:

本句为复合句, 主干是 the nation's top patent court appears completely ready to scale back on business-method patents; which 引导非限制性定语从句, 修饰先行词 business-method patents; 定语从句中, ever since 引导时间状语从句, 使用一般过去时的被动语态。

原文句2: In a move that has intellectual-property lawyers abuzz, the U.S. Court of Appeals for the Federal Circuit said it would use a particular case to conduct a broad review of business-method patents.

- 译文: 美国联邦巡回上诉法院宣布, 将利用一个特定案件对商业方法专利展开全面复审, 这一举措引发了知识产权律师界的热议。
- 常考单词&短语:
 - move n. 举措, 行动; 移动; 步骤 v. 移动; 搬家; 采取行动
 - intellectual-property n. 知识产权 (IP)
 - abuzz adj. 议论纷纷的, 嗡嗡作响的

- Court of Appeals for the Federal Circuit 联邦巡回上诉法院（美国司法机构专有名词）
- particular adj. 特定的，特殊的；详细的
- conduct v. 实施，执行；引导；指挥 n. 行为，举止
- a broad review 全面复审，广泛审查
- 长难句结构分析：
本句为复合句，主干是 the U.S. Court of Appeals for the Federal Circuit said...；
句首 In a move... 为状语，其中 that 引导定语从句修饰先行词 move；said 后是省略引导词 that 的宾语从句，宾语从句主干为 it would use a particular case to conduct a broad review...，不定式作目的状语。

原文句3: In re Bilski, as the case is known, is “a very big deal,” says Dennis D. Crouch of the University of Missouri School of Law.

- 译文：这个被称为“比尔斯基案”的案件，用密苏里大学法学院的丹尼斯·D·克劳奇的话来说，是“一件头等大事”。
- 常考单词&短语：
 - In re Bilski 比尔斯基案（美国专利法标志性案件，专有名词）
 - as is known 众所周知，正如人们所知
 - big deal 重要的事，大事；了不起的事
 - School of Law 法学院

原文句4: It has the potential to eliminate an entire class of patents.

- 译文：它有可能导致一整类专利被彻底废除。
- 常考单词&短语：
 - potential n. 潜力，可能性 adj. 潜在的，可能的
 - have the potential to do sth. 有做某事的可能性/潜力
 - eliminate v. 消除，根除；淘汰；废除
 - entire adj. 全部的，整个的；完全的
 - a class of 一类，一种

第三段

原文句1: Curbs on business-method claims would be a dramatic about-face, because it was the Federal Circuit itself that introduced such patents with its 1998 decision in the so-called State Street Bank case, approving a patent on a way of pooling mutual-fund assets.

- 译文：对商业方法专利申请的限制将是一次戏剧性的彻底转变，因为正是联邦巡回法院自己在1998年所谓的“道富银行案”的裁决中引入了这类专利，当时法院批准了一项共同基金资产聚合方式的专利。
- 常考单词&短语：
 - curb n. 限制，约束；路缘 v. 控制，抑制
 - claim n. 专利申请；主张，声称；索赔 v. 声称；索取；获得
 - dramatic adj. 戏剧性的；急剧的；引人注目的
 - about-face n. 彻底转变，大逆转；向后转
 - introduce v. 引入，引进；介绍；推行
 - decision n. 裁决，决定；判决
 - so-called adj. 所谓的
 - approve v. 批准，认可；赞成

- o pool v. 集中 (资金、资产等) ; 共用 n. 水池; 联营
 - o mutual-fund n. 共同基金
 - o asset n. 资产, 财产
- 长难句结构分析:
本句为多重复合句, 主干是 **Curbs on business-method claims would be a dramatic about-face**; **because** 引导原因状语从句, 该从句为 **it was...that...** 强调句, 强调主语 **the Federal Circuit itself**; 现在分词短语 **approving a patent...** 作伴随状语, 修饰前面的 **decision**, 说明裁决的具体内容。

原文句2: That ruling produced an explosion in business-method patent filings, initially by emerging Internet companies trying to stake out exclusive rights to specific types of online transactions.

- 译文: 这一裁决引发了商业方法专利申请的激增, 最初是新兴的互联网公司试图为特定类型的在线交易划定专属权利。
- 常考单词&短语:
 - o ruling n. 裁决, 裁定 adj. 统治的, 支配的
 - o explosion n. 激增, 爆发; 爆炸
 - o filing n. 申请 (文件) ; 归档
 - o initially adv. 最初, 起初
 - o emerging adj. 新兴的, 新出现的
 - o stake out 明确界定, 划定; 监视
 - o exclusive adj. 专有的, 独家的; 排他的
 - o exclusive right 专有权, 专属权利
 - o specific adj. 特定的, 具体的; 明确的
 - o transaction n. 交易, 业务; 办理
- 长难句结构分析:
本句主干是 **That ruling produced an explosion...**; **in business-method patent filings** 是介词短语作定语修饰 **explosion**; **initially by...** 是方式状语, 其中 **trying to stake out...** 是现在分词短语作后置定语, 修饰 **emerging Internet companies**。

原文句3: Later, more established companies raced to add such patents to their files, if only as a defensive move against rivals that might beat them to the punch.

- 译文: 后来, 更多老牌公司也竞相将此类专利加入自己的申请文件中, 哪怕只是作为一种防御性举措, 用来防范可能抢先一步的竞争对手。
- 常考单词&短语:
 - o established adj. 老牌的, 知名的; 已确立的
 - o race to do sth. 竞相做某事, 抢着做某事
 - o add...to... 把...添加到...
 - o if only 哪怕只是, 只要; 但愿
 - o defensive adj. 防御性的, 防卫的
 - o rival n. 竞争对手, 敌手 adj. 竞争的
 - o beat sb. to the punch 抢先某人一步, 先发制人 (固定习语, 考研高频)
- 长难句结构分析:
本句主干是 **more established companies raced to add such patents to their files**; **if only as a defensive move against rivals** 是方式状语; **that** 引导定语从句, 修饰先行词 **rivals**, **that** 在从句中作主语。

原文句4: In 2005, IBM noted in a court filing that it had been issued more than 300 business-method patents, despite the fact that it questioned the legal basis for granting them.

- 译文：2005年，IBM在一份法庭文件中称，其已被授予了300多项商业方法专利，尽管它本身对授予这类专利的法律依据提出了质疑。
- 常考单词&短语：
 - note v. 指出，表明；记录；注意到 n. 笔记；注释；便条
 - court filing 法庭文件，法院备案文件
 - issue v. 颁发，授予；发布，发行 n. 问题；发行物
 - despite prep. 尽管，不管
 - question v. 质疑，怀疑；询问 n. 问题，疑问
 - legal basis 法律依据
 - grant v. 授予，颁发；准予
- 长难句结构分析：

本句为复合句，主干是 **IBM noted...**；**in a court filing** 是地点状语；第一个 **that** 引导宾语从句，作 **noted** 的宾语，宾语从句使用过去完成时的被动语态；**despite the fact that...** 是让步状语，其中 **that** 引导同位语从句，解释说明 **fact** 的具体内容。

原文句5: Similarly, some Wall Street investment firms armed themselves with patents for financial products, even as they took positions in court cases opposing the practice.

- 译文：同样，一些华尔街投资公司用金融产品专利武装自己，即便它们在法庭案件中对这种专利授予做法持反对立场。
- 常考单词&短语：
 - similarly adv. 同样，类似地
 - Wall Street 华尔街（美国金融中心）
 - investment firm 投资公司
 - arm sb. with sth. 用某物武装某人
 - financial product 金融产品
 - even as 即便，正当；正如
 - take position 表明立场，持...态度
 - oppose v. 反对，抵制；与...竞争
 - practice n. 做法，惯例；实践；练习

第四段

原文句1: The Bilski case involves a claimed patent on a method for hedging risk in the energy market.

- 译文：比尔斯基案涉及一项能源市场风险对冲方法的专利申请。
- 常考单词&短语：
 - involve v. 涉及，包含；使卷入；牵涉
 - hedge v. 对冲（风险）；回避，避免 n. 树篱；对冲手段
 - hedge risk 对冲风险（金融高频短语）
 - energy market 能源市场

原文句2: The Federal Circuit issued an unusual order stating that the case would be heard by all 12 of the court's judges, rather than a typical panel of three, and that one issue it wants to evaluate is whether it should "reconsider" its State Street Bank ruling.

- 译文：联邦巡回法院发布了一项不同寻常的指令，声明该案将由法院全部12名法官共同审理，而非通常的3人合议庭，同时声明法院希望评估的一个问题是，是否应当“重新审议”其对道富银行案的裁决。
- 常考单词&短语：
 - unusual adj. 不同寻常的，特别的
 - order n. 指令，命令；订单；顺序 v. 命令；订购
 - state v. 声明，陈述；规定 adj. 国家的；州的
 - hear v. 审理（案件）；听到；倾听
 - rather than 而不是，而非
 - typical adj. 典型的，通常的；特有的
 - panel n. 合议庭，专家组；面板
 - evaluate v. 评估，评价；估算
 - reconsider v. 重新审议，重新考虑
- 长难句结构分析：

本句为多重复合句，主干是 **The Federal Circuit issued an unusual order**；现在分词短语 **stating that...and that...** 作后置定语修饰 **order**，**stating** 后接两个由 **that** 引导的并列宾语从句；第一个宾语从句中，**would be heard** 为被动语态，**rather than a typical panel of three** 作比较状语；第二个宾语从句中，主干为 **one issue is whether...**，**it wants to evaluate** 是省略引导词 **that** 的定语从句，修饰 **issue**，**whether** 引导表语从句，作 **is** 的表语。

第五段

原文句1: The Federal Circuit's action comes in the wake of a series of recent decisions by the Supreme Court that has narrowed the scope of protections for patent holders.

- 译文：联邦巡回法院的这一举措，是在最高法院近期做出一系列缩小专利持有人保护范围的裁决之后出台的。
- 常考单词&短语：
 - action n. 行动，举措；行为；诉讼
 - in the wake of 随...之后而来，紧跟在...之后（考研高频短语）
 - a series of 一系列的
 - Supreme Court 最高法院（美国联邦最高法院，专有名词）
 - narrow v. 缩小，使变窄 adj. 狭窄的；狭隘的
 - scope n. 范围，范畴；机会
 - protection n. 保护，保障
 - patent holder 专利持有人，专利权人
- 长难句结构分析：

本句为复合句，主干是 **The Federal Circuit's action comes...**；**in the wake of...** 是时间状语；**that** 引导定语从句，修饰先行词 **a series of recent decisions**（核心为 **a series**，故从句谓语用 **has narrowed**），**that** 在从句中作主语。

原文句2: Last April, for example, the justices signaled that too many patents were being upheld for “inventions” that are obvious.

- 译文：例如，去年4月，大法官们就表示，太多显而易见的“发明”被授予了专利保护。
- 常考单词&短语：
 - justice n. 大法官；正义，公正；司法
 - signal v. 表明，示意；发信号 n. 信号；标志
 - uphold v. 维持（原判、专利有效性）；支持，维护
 - obvious adj. 明显的，显而易见的，平淡无奇的
- 长难句结构分析：

本句为复合句，主干是 **the justices signaled that...**；**for example** 是插入语；**that** 引导宾语从句，作 **signaled** 的宾语，宾语从句使用过去进行时的被动语态 **were being upheld**；宾语从句中，**that are obvious** 是定语从句，修饰先行词 **“inventions”**。

原文句3: The judges on the Federal Circuit are “reacting to the anti-patent trend at the Supreme Court,” says Harold C. Wegner, a patent attorney and professor at George Washington University Law School.

- 译文：乔治华盛顿大学法学院教授、专利律师哈罗德·C·韦格纳表示：“联邦巡回法院的法官们正在对最高法院的反专利趋势作出回应。”
- 常考单词&短语：
 - judge n. 法官；裁判员 v. 判断，评判；审理
 - react to 对...作出回应，对...作出反应
 - anti-patent adj. 反专利的
 - trend n. 趋势，趋向；潮流
 - attorney n. 律师，代理人（尤指有资格出庭的律师）
 - Law School 法学院

三、完整原文

Over the past decade, thousands of patents have been granted for what are called business methods. Amazon.com received one for its “one-click” online payment system. Merrill Lynch got legal protection for an asset allocation strategy. One inventor patented a technique for lifting a box.

Now the nation’s top patent court appears completely ready to scale back on business-method patents, which have been controversial ever since they were first authorized 10 years ago. In a move that has intellectual-property lawyers abuzz, the U.S. Court of Appeals for the Federal Circuit said it would use a particular case to conduct a broad review of business-method patents. In *re Bilski*, as the case is known, is “a very big deal,” says Dennis D. Crouch of the University of Missouri School of Law. It has the potential to eliminate an entire class of patents.

Curbs on business-method claims would be a dramatic about-face, because it was the Federal Circuit itself that introduced such patents with its 1998 decision in the so-called *State Street Bank* case, approving a patent on a way of pooling mutual-fund assets. That ruling produced an explosion in business-method patent filings, initially by emerging Internet companies trying to stake out exclusive rights to specific types of online transactions. Later, more established companies raced to add such patents to their files, if only as a defensive move against rivals that might beat them to the punch. In 2005, IBM noted in a court filing that it had been issued more than 300 business-method patents, despite the fact that it questioned the legal basis for granting

them. Similarly, some Wall Street investment firms armed themselves with patents for financial products, even as they took positions in court cases opposing the practice.

The Bilski case involves a claimed patent on a method for hedging risk in the energy market. The Federal Circuit issued an unusual order stating that the case would be heard by all 12 of the court's judges, rather than a typical panel of three, and that one issue it wants to evaluate is whether it should "reconsider" its State Street Bank ruling.

The Federal Circuit's action comes in the wake of a series of recent decisions by the Supreme Court that has narrowed the scope of protections for patent holders. Last April, for example, the justices signaled that too many patents were being upheld for "inventions" that are obvious. The judges on the Federal Circuit are "reacting to the anti-patent trend at the Supreme Court," says Harold C. Wegner, a patent attorney and professor at George Washington University Law School.

四、完整译文

在过去十年间，数千项所谓的“商业方法”被授予了专利。亚马逊公司为其“一键式”在线支付系统获得了一项此类专利。美林证券为其一项资产配置策略获得了法律保护。有一位发明者为一种抬箱子的技术申请了专利。

如今，美国国家最高专利法院似乎已经做好了充分准备，要缩减商业方法专利的规模，这类专利自10年前首次获批以来就一直备受争议。美国联邦巡回上诉法院宣布，将利用一个特定案件对商业方法专利展开全面复审，这一举措引发了知识产权律师界的热议。这个被称为“比尔斯基案”的案件，用密苏里大学法学院的丹尼斯·D·克劳奇的话来说，是“一件头等大事”。它有可能导致一整类专利被彻底废除。

对商业方法专利申请的限制将是一次戏剧性的彻底转变，因为正是联邦巡回法院自己在1998年所谓的“道富银行案”的裁决中引入了这类专利，当时法院批准了一项共同基金资产聚合方式的专利。这一裁决引发了商业方法专利申请的激增，最初是新兴的互联网公司试图为特定类型的在线交易划定专属权利。后来，更多老牌公司也竞相将此类专利加入自己的申请文件中，哪怕只是作为一种防御性举措，用来防范可能抢先一步的竞争对手。2005年，IBM在一份法庭文件中称，其已被授予了300多项商业方法专利，尽管它本身对授予这类专利的法律依据提出了质疑。同样，一些华尔街投资公司用金融产品专利武装自己，即便它们在法庭案件中对这种专利授予做法持反对立场。

比尔斯基案涉及一项能源市场风险对冲方法的专利申请。联邦巡回法院发布了一项不同寻常的指令，声明该案将由法院全部12名法官共同审理，而非通常的3人合议庭，同时声明法院希望评估的一个问题是，是否应当“重新审议”其对道富银行案的裁决。

联邦巡回法院的这一举措，是在最高法院近期做出一系列缩小专利持有人保护范围的裁决之后出台的。例如，去年4月，大法官们就表示，太多显而易见的“发明”被授予了专利保护。乔治华盛顿大学法学院教授、专利律师哈罗德·C·韦格纳表示：“联邦巡回法院的法官们正在对最高法院的反专利趋势作出回应。”